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| 5 | Castellanos v. Mercedes-Benz USA, LLC | <p>Defendant Fletcher Jones Motor Cars, Inc. (FJMC) moves for summary judgment on the Complaint filed by Plaintiffs Enrique Rodriguez Castellanos and Zachary Ian Ruiz. Specifically, FJMC moves for summary judgment on the third cause of action for negligent repair, which is the only cause of action asserted against FJMC. For the following reasons, the motion is <b>DENIED</b>.</p> <p>Under the revised deadlines of Code Civ. Proc. § 437c effective January 1, 2025, a summary judgment motion must be served at least 81 days before the hearing date. If notice is served by express mail or “another method of delivery providing for overnight delivery, the required 81-day period of notice shall be increased by two court days.” (Code Civ. Proc. § 473c(a)(2).)</p> <p>This notice period provided by Code Civ. Proc. § 437c is mandatory. (<i>Id</i>; see <i>Lackner v North</i> (2006) 135 Cal.App.4th 1188, 1207-1208.) The court does not have discretion to shorten the notice period without the parties’ consent. Code Civ. Proc. § 437c(a) gives the court power to shorten time on other summary judgment time requirements, but not on the 75-day notice of hearing. (<i>McMahon v. Superior Court</i> (2003) 106 Cal.App.4th 112, 116.)</p> <p>The hearing on this motion is set for April 17, 2025. 81 days before April 17, 2025 is January 26, 2025. Two court days before January 26, 2025 is January 23, 2025. FJMC served the motion by email on January 30, 2025 – 7 days late. Thus, the motion must be denied as FJMC did not provide sufficient notice of the motion.</p> <p>Additionally, while the proofs of service indicate all the documents were served by email, the electronic service address of the person making the service was not provided in violation of Code Civ. Proc. § § 1013b(b).</p> <p>FJMC to give notice.</p> |
| 6 | Gonzalez v. Phillips                  | <p>Defendants Cardflex, Inc. d/b/a Cliq, and Andrew Phillips’ Motion for Extension of Deadline re Motion for [Re]consideration is <b>DENIED</b>.</p> <p>“In general, a party may move for reconsideration of a motion within 10 days after the motion is denied, based upon ‘new or different facts, circumstances, or law.’ [Citation.] ... The overriding purpose of Code of Civil Procedure section 1008 is to prevent duplicative motions. [Citation.]” (<i>UAS Management, Inc. v. Mater Misericordiae Hospital</i> (2008) 169 Cal.App.4th 357, 367; see <i>Myers v. Superior Court</i> (2022) 78 Cal.App.5th 1127, 1135 [motion for reconsideration properly denied because moving party failed to timely file its motion]; see <i>Advanced Building Maintenance v. State Comp. Ins. Fund</i> (1996) 49 Cal.App.4th 1388, 1392 [“The motion for reconsideration must be made within 10 days after service of written notice of entry of the order”].)</p> <p>In <i>Advanced Building Maintenance</i>, the amended notice of ruling on demurrer and motion to strike was served on October 12, 1994, such that the motion for reconsideration had to be filed by October 22, 1994. (<i>Advanced Building Maintenance v. State Comp. Ins. Fund</i> (1996) 49 Cal.App.4th 1388, 1392.) However, respondent did not file the motion for reconsideration until October 31, 1994, which the trial court denied</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                |

as untimely. (*Ibid.*) On appeal, the Court of Appeal for the Second District, Division 2, held “the trial court’s denial of the motion for reconsideration was correct.” (*Advanced Building Maintenance v. State Comp. Ins. Fund* (1996) 49 Cal.App.4th 1388, 1392.)

Here, Defendants were served with the Notice of Ruling, on Plaintiff’s Motion for Attorneys’ Fees, Costs and Prejudgment Interest, on November 21, 2024. (Huber Declaration, ¶ 4.) Taking into account electronic service, Defendants had to file their Motion for Reconsideration no later than December 3, 2024, or 10 days after service of the Notice of Ruling, plus two court days. However, Defendants did not file their present Motion for Extension, which included their proposed Motion for Reconsideration, until December 9, 2024. Defendants’ Motion for Reconsideration was therefore untimely.

The *Advanced Building Maintenance* court held that section 473 of the Code of Civil Procedure could not be used to extend the filing date of a jurisdictional motion, such as a motion setting aside judgment under section 663 of the Code of Civil Procedure. (*Advanced Building Maintenance v. State Comp. Ins. Fund* (1996) 49 Cal.App.4th 1388, 1393-1394; Code Civ. Proc., § 663.)

Like section 663, section 1008 of the Code of Civil Procedure is also jurisdictional. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840; *David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP* (2022) 83 Cal.App.5th 1027, 1048.)

The California Supreme Court further held that section 1008 is the only statute that governs motions for reconsideration, such that section 473 could not be used to circumvent the requirements of section 1008. (*Even Zohar Construction & Remodeling, Inc. v. Bellaire Townhouses, LLC* (2015) 61 Cal.4th 830, 840-844.) Thus, Defendants’ failure to request the transcript be expedited, and their calendaring error, are not proper grounds for extending the 10-day deadline to file their Motion for Reconsideration. (Huber Declaration, ¶¶ 3, 5-8.)

In addition to section 473, Defendants also cite to section 1054 of the Code of Civil Procedure, as well as rules 3.503 and 3.1300 of the Rules of Court, *Juarez v. Wash Depot Holdings, Inc.* (2018) 24 Cal.App.5th 1197, 1201, and *Bozzi v. Nordstrom, Inc.* (2010) 186 Cal.App.4th 755, 765, in support of their position that the Court has the discretion to consider an untimely Motion for Reconsideration.

However, and as noted, section 1008 is a jurisdictional statute, such that the 10-day deadline to file the Motion for Reconsideration cannot be extended.

Further, Defendants’ Motion for Reconsideration fails on the merits because they have presented no new or different facts, circumstances or law. Instead, Defendants believe the Court erred in awarding Plaintiff approximately \$650,000 in attorneys’ fees, and approximately \$100,000 in costs. (Huber Declaration, ¶ 5.) (See *David S. Karton, a Law Corp. v. Musick, Peeler Garrett LLP* (2022) 83 Cal.App.5th 1027, 1049 [trial court did not err in denying motion for reconsideration based on trial court’s